THE STATE
versus
RICHMORE GUSHU

HIGH COURT OF ZIMBABWE
MANDAZA J
HARARE, 6 and 20 July 2026

Criminal Trial-Sentencing Judgement

L C Mamombe, for the state
N P Goneso, for the accused

MANDAZA J: The accused appeared before the court facing one count of contravening s47 (1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*], "Murder". At the conclusion of the trial, I delivered an ex-tempo judgement and sentence. The full reasons for the sentence are as follows:

The accused, Richmore Gushu, is an adult male. The allegations are that on the second of October 2025 at or near Samaita Shop, Shungu Business Centre, under Chief Dotito, the accused caused the death of Blessed Gushu by hitting him with a broomstick in the stomach twice, causing injuries from which the deceased died.

The accused guilty to culpable homicide. The state accepted the accused's limited plea, and a statement of Agreed Facts was tendered before the court. The accused was convicted of contravening s 49 of the Criminal Code, which is "culpable homicide."

The brief facts are that on 2 October 2025 at around 1900 hours, the accused arrived at Chiromo shop at Shandu business centre, under Chief Dotito in Mt Darwin. He inquired about Claudious Chiromo's whereabouts because he wanted to sell him some gold. The deceased requested to see the gold, which the accused showed him. After inspecting the gold, the deceased informed the accused that it was fake. This did not go down well with the accused, who threatened to assault the deceased.

The deceased left the shopping centre after the altercation and headed to Samaita Investment shop. The accused followed him. He found the deceased sitting on the shop

counter, and he pulled him by his right leg. Both men fell to the ground. After the fall, the accused stood and retrieved a broomstick from behind the shop door and struck the deceased twice in the stomach. After the assault, the deceased collapsed. The deceased then pronounced to the people that he had been injured by the accused, and he was in pain.

He expressed his inability to walk home and asked one Moses to either take him to his home or offer him a place to sleep. Moses provided the deceased with a place to sleep for the night. At approximately 12:15 am on 3 October 2025, the deceased's condition worsened. Moses informed the deceased's relatives, including his uncle Jaison Gushu and his father Clemence Gushu, about the deceased's condition. The deceased was later transferred to Mt Darwin Hospital, where he unfortunately passed away upon arrival.

Miriam Sariri, the shopkeeper at Samaita Investment shop, identified the broomstick that was used to strike the deceased. The post-mortem concluded that the cause of death was *bacterial peritonitis, small bowel perforation and blunt abdominal trauma*.

Assessing a sentence is one of the most difficult tasks that a judicial officer faces. Sentencing requires a rational process in which the court weighs all the relevant factors and decides what sentence is fair and appropriate. See *S* v *Shariwa 2003* (1) ZLR 314 (H). It is trite that the punishment must be individualised. The court must consider all the relevant information. A judicial officer must never allow his/her emotions to cloud his/her judgement. Punishment must be approached humanely and rationally. The punishment handed down must fit both the crime and the offender. The most important factors in determining the sentence are the person, the character and the circumstances of the crime. See *S* v *Shariwa* (*supra*) and *S* v *Ngulube* 2002 (1) ZLR 316 (H).

In sentencing an accused person, the interests of the triad must be considered as enunciated in the oft-cited case of *S* v *Shariwa* (*supra*). The punishment must suit the crime and the offender, and be fair to society. There is no room for an instinctive penalty in our jurisdiction.

However, in passing sentence, the objective is not to inflict revenge but to accord punishment that is in proportion to the transgression that was committed. Punishment must fit the offence. It is about giving an offender their just deserts.

The law in respect of culpable homicide is well-settled. Culpable homicide is defined in s49 of the *Criminal Law (Codification and Reform) Act* [*Chapter 9:23*] as follows:

> "49 Culpable homicide
> Any person who causes the death of another person

a) Negligently failing to realise that death may result from his or her conduct; or
b) realising that death may result from his or her conduct and negligently failing to guard against that possibility;
Shall be guilty of culpable homicide and liable to imprisonment for life or any definite period of imprisonment or a fine up to or exceeding level fourteen or both"

A person beating a fellow human being with a broomstick must at the very least foresee the possibility that he will cause serious harm. The human body is very fragile. The stomach is a delicate part of the body, as evidenced by the rupture of the small bowel.

The statement of agreed facts was also produced. In brief, the accused went to the Chiromo shop, where he intended to sell gold to Claudious Chiromo. The deceased requested to see the gold. After inspecting the gold, the deceased informed him that it was fake. That comment upset the accused. Later, he followed the deceased to the Samaita shop, where he found the deceased sitting on the shop counter. He pulled his left leg, and both men fell to the ground. The accused entered the shop and retrieved a broomstick from behind the shop door. He went on to strike the deceased twice in the stomach. After striking the deceased, he left for his homestead, leaving the deceased lying on the ground. The deceased's condition deteriorated, and he was transported to Mt Darwin Hospital, where he passed away upon arrival.

The State produced a post-mortem report that concluded that the cause of death was *bacterial peritonitis, small bowel perforation and blunt abdominal trauma*.

The state also produced a certificate of weight of the murder weapon, which showed that the log measured one metre and four centimetres. It weighed six hundred and fifty (650) grammes.

In his confirmed, warned, and cautioned statement, the accused admitted to the allegations being levelled against him. He also admitted to pulling the deceased by his right leg whilst seated on a shop counter and striking him with a stick several times in his ribs.

The post-mortem concluded that the cause of death was bacterial *peritonitis*, small bowel perforation and blunt abdominal trauma. Bacterial *peritonitis* is a serious condition that starts in the abdomen. That is the area of the body between the chest and the pelvis. It happens when the thin layer of tissue inside the abdomen becomes inflamed. The tissue layer is called the *peritoneum*. *Peritonitis* usually results from an infection caused by bacteria or fungi. There are two types of peritonitis:

1. Spontaneous bacterial *peritonitis*, which is caused by bacteria. It can happen when someone has liver disease, such as cirrhosis, or kidney disease.

2. Secondary *peritonitis*, which can happen due to a hole, also called a rupture, inside an organ in the abdomen.

In *casu*, the actions of the accused resulted in the deceased sustaining a small bowel perforation, which resulted in the deceased acquiring peritonitis.[1]

The normal range of sentences varies from case to case. It is trite that each case depends upon its own facts. The statutory penalty where there are aggravating factors is a Level 14 fine or life imprisonment. The presumptive penalty is 5 years imprisonment. The aggravating factors are a high degree of negligence, multiple deaths and cruel and inhuman treatment of the deceased. The fact that the legislature imposed a life sentence means the offence is taken seriously.

Where the following mitigating factors are present: contributory negligence by the deceased, compensation paid and rendering assistance to the deceased, the presumptive penalty is 3 years imprisonment.

The presumptive penalty is defined in *S* v *Blessed Sixpense and Ors*, HH567-23 per MUTEVEDZI J as follows:

> "..a punishment that is found midway between a crime committed in what I may describe on one hand as a run of the mill circumstances and the particularly horrendous ones on the other. It is a median. It is a starting point. It is not a mandatory minimum penalty…As shown by the language used in s5 of the guidelines, a sentencing court is permitted to either go higher or lower than the presumptive penalty. When the court does that, the requirement is that it must justify that departure."

It is clear from the above quotation that a sentencing court should not be detained by the presumptive penalty. The sentencing court is at large to depart from the presumptive penalty. What is important is for the sentencing court to justify the departure.

In mitigation, we were advised that the accused is a first offender. He is now 28 years old and was 27 years old when he committed the offence. He can be classified as a youthful offender. He is an orphan. He went up to Grade 7 with his education. His limited plea is a sign of remorse and contrition. The deceased was his cousin. He will live with the stigma of having caused the death of a human being for the rest of his life. For that proposition, the court was referred to the case of *S* v *Leon West* HB152/22. It was submitted that the degree of negligence was not high under the circumstances. The accused prayed for a short custodial term. It was also brought to the court's attention that no compensation was paid.

[1] https://www.mayoclinic.org Peritonitis-Symptoms and causes (accessed on 15 July 2026)

In aggravation, the State submitted that the accused caused loss of life. The accused resorted to violence instead of handling the issue amicably. The accused should have shown respect to the deceased as he was his older cousin. He ought to have been his brothers' keeper. By using a weapon, the accused was negligent. The State called for a deterrent sentence as a way of sending a message to society that violence involving the killing of others is not tolerated. The State called for a sentence within the presumptive penalty range, with no portion suspended.

Our attention was also drawn to the Victim Impact Statement deposed to by Moses Kwarira, the deceased's cousin. He submitted that it was difficult to accept the death because it felt unfair. He sadly stated that the now deceased's family and parents are now living in fear of the accused's close relatives because they did not want the accused to be arrested. They are expecting the deceased to offer compensation to the deceased's family. At the time the trial commenced, the accused had not paid any form of compensation to the deceased's family. He called for a custodial sentence as a way of sending a clear message that violent conduct is not tolerated and as a way of deterring similar acts in the community. The accused was a cousin of the deceased, and he had a duty to protect him and not harm him.

This court has dealt with several culpable homicide cases. In *S* v *Mafigu* HH 540-23, the accused was initially charged with murder after striking his brother on the head with a hoe during a violent altercation. He was convicted of culpable homicide and sentenced to 10 years imprisonment, with 3 years suspended on condition of good behaviour.

In *S* v *Tofarasei* HMA 08-22, the accused was initially charged with murder, but the charge was reduced to culpable homicide. He was sentenced to 10 years' imprisonment, with 2 years suspended, leaving an effective term of 8 years.

In *S* v *Chinembiri* HH 291-24, the accused was charged with murder after repeatedly assaulting the deceased, whom he suspected of stealing an electric cable. The State accepted a limited plea of culpable homicide, as the accused lacked intent to kill but acted with gross negligence by persisting in the assaults and failing to seek medical help. The court emphasised the sanctity of life and rejected leniency, sentencing him to 13 years' imprisonment, with 3 years suspended, leaving an effective term of 10 years.

In *S* v *Kadenhe* HH 130-24, the accused fatally assaulted a close relative during a beer-drinking session after being reprimanded for neglecting his sick wife. Initially, the accused was charged with murder; he tendered a limited plea of culpable homicide, which the State accepted. While his negligence was considered ordinary, aggravating factors included

the needless loss of life and the impact on the deceased's family. He was sentenced to 10 years imprisonment, with 3 years suspended, leaving an effective term of 7 years.

In *S* v *Ncube* HB 119-16, the accused, a 46-year-old mine employee, was charged with murder after fatally assaulting a younger colleague during a drinking party. The deceased had provoked him with insults, stones and a shovel attack. Aggravation lay in the brutality of the assault and the needless loss of life. He was sentenced to 10 years imprisonment, with 2 years suspended, leaving an effective term of 8 years.

Lastly, in *S* v *Nsoro* HH 190-16, the accused was charged with murder after fatally stabbing her husband during a domestic dispute. The State accepted her limited plea of culpable homicide, as she lacked intent to kill but acted with a high degree of negligence by resorting to lethal weapons instead of escaping or seeking help. The court stressed the sanctity of life and the dangers of domestic violence, sentencing her to 10 years imprisonment, with 2 years suspended, leaving an effective term of 8 years.

In *casu*, the accused's counsel submitted that the accused showed remorse by tendering a limited plea and by showing contrition. We did not observe any signs of remorse or contrition from the accused. In *S Makaza R 19-HH-157,* the court dealing with a case of culpable homicide held as follows:

> "In cases such as this, where the matter has proceeded on agreed facts, one can very well see the difficulties of ascertaining the issue of remorse given the possibility that the lesser plea may be motivated by a quest for a less harsh penalty."

I associate myself with the observations of the learned judge. Whilst remorse is an important factor in sentencing, it cannot override other important considerations. The accused showed unbridled aggression. He did not restrain himself. We also identified several aggravating factors, as will be demonstrated below.

The court considered it aggravating that the accused actually sought the deceased, who had moved from the earlier place of altercation. Having sought the deceased, he went on to pull him by the leg whilst he was seated by the counter and fatally assaulted him.

It was the accused who went on to fetch a broomstick, which he used with great force on the deceased to the point of rupturing his small bowels. We also consider it aggravating that the accused struck the deceased not once but twice with tremendous force.

We also consider it aggravating that the deceased did not retaliate. He must have been a peace-loving human being. We say so because when the altercation started, he moved away

from the accused and sat in the next shop. The accused followed and fatally assaulted him with a broom twice.

We also considered it aggravating that the deceased did not take time to succumb to his injuries. He died the following day. Severe force was used, as the deceased sustained a ruptured small bowel. We also took into account that no form of compensation was paid.

Having considered the aggravating and mitigating factors in this case, the court is of the view that the aggravating factors far outweigh the mitigating factors. The manner in which the deceased was assaulted evinced brutality and extreme violence.

The court is also guided by s 9 of the Sentencing Guidelines, which states that a court may find other circumstances in which any offence is committed to be either aggravating or mitigating for the purpose of arriving at an appropriate sentence.

The several highlighted aggravating circumstances justify a departure from the presumptive penalty. See s 5 (2) of the (Criminal Procedure) Sentencing Guidelines, Regulations of 2023. We are inclined to depart, as we hereby do, and send a message that violence does not pay. Disputes must be resolved amicably, especially where the parties are related.

This is one of those cases where deterrence is important. A message must be sent out that the law will deal firmly with violence resulting in a wanton loss of life. The deceased was very young when he met his death. His life was unnecessarily cut short.

Accordingly, the accused is sentenced as follows:

> 10 years imprisonment with 2 years imprisonment suspended for 5 years on condition the accused is not within that period convicted of an offence involving the unlawful taking away of another's life for which he is convicted and sentenced to imprisonment without the option of a fine.

MANDAZA J: ……

The National Prosecuting Authority, the state's legal practitioners
Goneso and Associates, the accused's legal practitioners